

FEDERAL MARITIME COMMISSION

DOCKET NO. 22-09

FULTER LOGISTICS LLC, REVOCATION OF OCEAN TRANSPORTATION INTERMEDIARY LICENSE NO. 027912NF

BUREAU OF ENFORCEMENT SUBMISSION OF MATERIALS SUPPORTING NOTICE OF REVOCATION

Pursuant to Rule 702 of Subpart X of the Federal Maritime Commission (Commission or FMC) Rules of Practice and Procedure, 46 C.F.R. § 502.702, the Bureau of Enforcement (BOE) submits copies of the Notice of Intent to Revoke (Notice) issued to Fulter Logistics LLC (Fulter or Respondent) by the Commission's Bureau of Certification and Licensing (BCL), as well as an appendix of materials supporting the Notice to the presiding Administrative Law Judge (ALJ) and the Respondent.

On March 11, 2022, BCL issued a Notice of Intent to Revoke the ocean transportation intermediary (OTI) license of Fulter due to its failure to report changes in material fact to the Commission; its failure to respond to the Commission's lawful inquiry, and its lack of the character necessary to render ocean transportation intermediary services. On March 29, 2022 pursuant to the Commission's regulations at 46 C.F.R. §§ 515.17 and 502.702, Fulter submitted a request for a hearing to the Office of the Secretary. On March 31, 2022, the Commission issued a Notice of Hearing Request and Assignment transmitting this matter to the Office of Administrative Law Judges. On April 7, 2022, the presiding ALJ issued a Notice and Initial Order (Notice) advising BOE of Fulter's request for a hearing and BOE's resulting obligation to submit to the ALJ and

Fulter a copy of BCL's Notice of Intent to Revoke and a copy of BCL's materials supporting the Notice, which are to be filed with the ALJ and served on Fulter, May 9, 2022.

The ALJ's Notice also indicated BOE may file a brief outlining its legal arguments, proposed findings of fact, and additional information. That filing would likewise be due on May 9, 2022. BOE has considered whether to make such a filing, but respectfully declines the opportunity. BOE will submit its reply to Fulter's Response to this filing pursuant to Rule 704 of the Commission's Rules of Practice and Procedure at 46 C.F.R. § 502.704, within 20 days of Fulter having filed its response.

Serena Lei-
Peng Tang

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Lei-Peng Tang
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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing Bureau of Enforcement's Notice of Appearance was served upon Respondent by delivering the aforementioned document via email transmission this 9th day of May 2022.

**Serena Lei-
Peng Tang** Digitally signed by Serena
Lei-Peng Tang
Date: 2022.05.09
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Serena L. Tang